

Produit : Electronic / Measuring devices

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USA

Product's definition

Category

In which category the product is classified ?

ELECTRONIC / MEASURING DEVICES - Battery (Labelling, Hazardous substances, recycling...)

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Federal Law

The Mercury-Containing and Rechargeable Battery Management Act

[42 USC Sections 14301-14336](#) was designed to phase out the use of mercury in batteries and facilitate the collection and recycling of nickel-cadmium rechargeable, small sealed lead-acid rechargeable, and other regulated batteries. "Regulated batteries" include those containing cadmium and/or lead electrodes or other batteries subject to a determination by the Administrator of the EPA.

Department of Energy - Energy Efficiency Regulations

Battery Chargers - A "battery charger" is a "device that charges batteries for consumer products, including battery chargers embedded in other consumer products." [10 C.F.R. § 430.2](#)

Rechargeable Batteries - Under federal law, some products may be considered a "rechargeable consumer product without an easily removable battery" that uses a "regulated battery." [42 U.S.C. § 14322\(d\)](#).

A "rechargeable consumer product" is defined as a product that, when sold at retail, includes a "regulated battery as a primary energy supply" and is intended primarily for personal or household use. 42 U.S.C. [§ 14302\(6\)](#).

A "regulated battery" is a rechargeable battery that contains a cadmium or lead electrode or any combination of cadmium or lead electrodes; or contains other electrode chemistries that have been determined to be toxic and may cause substantial harm to human health and the environment if discarded into the solid waste stream. 42 U.S.C. [§ 14302\(7\)](#).

An "easily removable" non-vehicular battery is one that a consumer can detach with common household tools at the end of the battery's life. 42 U.S.C. [§ 14302\(3\)](#).

Department of Transportation – Hazardous Materials Regulations

“Equipment” means the device or apparatus for which the lithium cells or batteries will provide electrical power for its operation.

“Lithium cell(s)” or “battery(ies)” includes both lithium metal and lithium ion chemistries.

Consumer Product Safety Commission – Safety Standard and Notification Requirements for Button Cell or Coin Batteries and Consumer Products Containing Such Batteries. [16 CFR part 1263.2](#).

Button cell or coin battery means:

- (1) A single cell battery with a diameter greater than the height of the battery; or
- (2) Any other battery, regardless of the technology used to produce an electrical charge, that is determined by the Commission to pose an ingestion hazard.

Consumer product containing button cell or coin batteries means a consumer product containing or designed to use one or more button cell or coin batteries, regardless of whether such batteries are intended to be replaced by the consumer or are included with the product or sold separately.

Ingestion hazard means a hazard caused by a person swallowing or inserting a button cell or coin battery into their body whereby:

- (1) The button cell or coin battery can become lodged in the digestive tract or airways; and
- (2) Can potentially cause death or serious injury through choking, generation of hazardous chemicals, leaking of hazardous chemicals, electrical burns, pressure necrosis, or other means.

California Law:

Some of the products may include a "battery charging system" (BCS) defined under California law as “all rechargeable batteries or devices incorporating a rechargeable battery and the chargers used with them.” [20 Cal. Code Regs. §1602\(w\)](#).

Some of the products may also be considered “rechargeable consumer products” in California, defined under state law as “any product, including any laptop computer or cordless electric tool or appliance, which, when sold at retail, contains, or is sold with, a rechargeable battery as its primary power supply, and that is commonly used for personal or household purposes.” [Cal. Public Res. Code § 15011](#).

Under California law, “rechargeable battery” means “any dry cell battery containing an electrode composed of cadmium or lead, or any combination thereof, of any shape that is designed for reuse, and is capable of being recharged after repeated uses.” [Cal. Public Res. Code § 15010](#).

Some of the products' batteries may also contain perchlorate materials, defined to include “all forms of matter, goods, and products” that contain perchloric acid or perchlorate compounds. However, perchlorate materials containing less than 6 ppb of perchlorate are excluded from the scope of “perchlorate materials.” Some lithium batteries, particularly lithium coin cell “CR” batteries, contain perchlorates and perchlorate salts in the electrolyte component of the cell. The CA Department of Toxic Substances Control has included lithium batteries in a reference document containing a [list of perchlorate materials](#). [Cal. Code Regs §§ 67384.1 – 67384.10](#)

Illinois Law: “Rechargeable battery” means one or more voltaic or galvanic cells, electrically connected to produce electric energy, that are designed to be recharged for repeated uses. “Rechargeable battery” includes, but is not limited to, a battery containing lithium ion, lithium metal, or lithium polymer or that uses lithium as an anode or cathode, that is designed to be recharged for repeated uses. “Rechargeable battery” does not mean either of the following: (1) Any dry cell battery that is used as the principal power source for transportation, including, but not limited to, automobiles, motorcycles, or boats. (2) Any battery that is used only as a backup power source for memory or program instruction storage, timekeeping, or any similar purpose that requires uninterrupted electrical power in order to function if the primary energy supply fails or fluctuates momentarily. [415 ILCS 5/22.23d](#).

Maine Law: A "rechargeable battery" is "any nickel-cadmium or sealed lead-acid battery that is designed for reuse and is capable of being recharged after repeated use." [ME Stat. Tit. 38, §2165\(1\)\(B\)](#).

New York Law: A "rechargeable battery" is " any rechargeable nickel-cadmium, sealed lead, lithium ion, nickel metal hydride battery, or any other such dry cell battery capable of being recharged weighing less than twenty-five pounds, or battery packs containing such batteries; but shall not include a battery used as the principal electric power source for a vehicle, such as, but not limited to, an automobile, boat, truck, tractor, golf cart or wheelchair; for storage of electricity generated by an alternative power source, such as solar or wind-driven generators; or for memory backup that is an integral component of an electronic device." ([Environmental Conservation Law § 27-1803](#))(citations to specific sections of the NY statutes online is not possible; please click "ENV" from the index at this link and then select the cited section).

"Lead-acid battery" means "any battery with a capacity of six or more volts which contains lead and sulfuric acid and which is used as a power source in a vehicle." (Environmental Conservation Law § 27-1701). It does not appear that Decathlon sells or has products that use lead-acid batteries; if Decathlon sells "lead-acid batteries" in the future, it must comply with New York regulations not summarized in this conformity card. Those rules are set forth in [Environmental Conservation Law § 27-1701](#) (citations to specific sections of the NY statutes online is not possible; please click "ENV" from the index at this link and then select the cited section).

New Jersey Law:

A "dry cell battery" is "any type of button, coin, cylindrical, rectangular or other shaped, enclosed device or sealed container consisting of a combination of two or more voltaic or galvanic cells, electrically connected to produce electric energy, composed of lead, lithium, manganese, mercury, mercuric oxide, silver oxide, cadmium, zinc, copper or other metals, or any combination thereof, and designed for commercial, industrial, medical, institutional or household use, including any alkaline manganese, lithium, mercuric oxide, silver oxide, zinc-air or zinc-carbon battery, nickel-cadmium rechargeable battery or sealed lead rechargeable battery." [N.J. S. A. § 13:1E-99.61](#).

"Lithium battery" means "any button, coin, cylindrical, rectangular or other shaped dry cell battery consisting of lithium and other chemicals commonly used in pocket calculators, wrist watches and other electrical appliances."

"Mercuric oxide battery" means "any button, coin, cylindrical, rectangular or other shaped dry cell battery consisting of zinc, potassium and mercury oxide which is designed or sold for commercial, industrial, medical or institutional use."

"Nickel-cadmium rechargeable battery" means "any button, coin, cylindrical, rectangular or other shaped dry cell battery composed of cadmium and nickel which is designed for reuse and is capable of being recharged after repeated uses, and which has a useful life of at least 12 months, except that "nickel-cadmium rechargeable battery" shall not include any dry cell battery used as a backup power source for memory or program instruction storage, timekeeping, or any similar purpose that requires uninterrupted electrical power in order to operate if the primary energy supply fails or fluctuates momentarily"

"Rechargeable consumer product" means "any product, including, but not limited to, a cordless electrical tool or appliance, containing a nickel-cadmium rechargeable battery or a sealed lead rechargeable battery, which is purchased at retail and commonly used for personal or household purposes"

"Sealed lead rechargeable battery" means "any button, coin, cylindrical, rectangular or other shaped dry cell battery composed of lead and other chemicals which is designed for reuse and is capable of being recharged after repeated uses, and which has a useful life of at least 12 months"

"Silver oxide battery" means "any button, coin, cylindrical, rectangular or other shaped dry cell battery consisting of silver oxide, potassium hydroxide or sodium hydroxide and zinc, and mercury commonly used in wrist watches and other electrical appliances"

"Zinc-air battery" means "any button, coin, cylindrical, rectangular or other shaped dry cell battery consisting of zinc, potassium hydroxide and commonly used in hearing aids, photographic equipment and electrical appliances."

"Lead acid battery" means a "lead acid electric storage battery designed for use in motor vehicles, aviation equipment or marine vessels." (N.J.S.A. § 13:1E-199). It does not appear that Decathlon sells such batteries; if Decathlon sells "lead acid

batteries” in the future, it must comply with New Jersey regulations not summarized in this conformity card. Those rules are set forth in [N.J.S.A. § 13:1E-199 et seq.](#)

New York Law:

“Battery manufacturer” means every person, firm or corporation that: (i) produces rechargeable batteries sold or distributed in the state, or packages such batteries for sale in the state, except that if such production or packaging is for a distributor having the right to produce or otherwise package that same brand of battery in the state, then such distributor shall be deemed to be the battery manufacturer; or (ii) imports rechargeable batteries into the United States that are sold or distributed in the state.

“Place of business” means the location at which a retailer sells or offers for sale to consumers, rechargeable batteries, or products containing such batteries at the time of sale.

“Rechargeable battery” means any rechargeable nickel-cadmium, sealed lead, lithium ion, nickel metal hydride battery, or any other such dry cell battery capable of being recharged weighing less than twenty-five pounds, or battery packs containing such batteries; but shall not include a battery used as the principal electric power source for a vehicle, such as, but not limited to, an automobile, boat, truck, tractor, golf cart or wheelchair; for storage of electricity generated by an alternative power source, such as solar or wind-driven generators; or for memory backup that is an integral component of an electronic device.

“Retailer” means a person, firm or corporation that engages in the sale of rechargeable batteries, or products containing such batteries, to a consumer in the state, including, but not limited to, transactions conducted through sales outlets, catalogs, by mail, telephone or the internet. For the purposes of this section retailer shall not include a food store.

[N.Y. Env't Conserv. Law § 27-1803.](#)

Texas Law: For purposes of Texas's law regarding the collection of fees upon the sale of lead acid batteries, “lead acid battery” means “any battery which contains lead and sulfuric acid.” ([Tex. Health & Safety Code Ann. § 361.138](#)). Unlike the definitions under New Jersey and New York law, which limit lead acid batteries to those uses in vehicles, the Texas definition does not include such a limitation. It does not appear that Decathlon sells or has products that use lead-acid batteries.

Comments

Comments

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

English

Mandatory labelling on product

What are the mandatory labelling on the product ?

Federal Law

Depending on battery chemistry, some batteries may be subject to federal labelling regulations. Under the Mercury-Containing and Rechargeable Battery Management Act, each regulated battery or rechargeable consumer product without an easily removable battery, whether produced domestically or imported, shall bear the following labels:

(1) 3 chasing arrows or a comparable recycling symbol.

(2)(A) On each regulated battery which is a nickel-cadmium battery, the chemical name or the abbreviation "Ni-Cd" and the phrase "BATTERY MUST BE RECYCLED OR DISPOSED OF PROPERLY."

(B) On each regulated battery which is a lead-acid battery, "Pb" or the words "LEAD", "RETURN", and "RECYCLE" and if the regulated battery is sealed, the phrase "BATTERY MUST BE RECYCLED."

(3) On each rechargeable consumer product containing a regulated battery that is not easily removable, the phrase "CONTAINS NICKEL-CADMIUM BATTERY. BATTERY MUST BE RECYCLED OR DISPOSED OF PROPERLY." or "CONTAINS SEALED LEAD BATTERY. BATTERY MUST BE RECYCLED." as applicable.

(4) On the packaging of each rechargeable consumer product, and the packaging of each regulated battery sold separately from such a product, unless the required label is clearly visible through the packaging, the phrase "CONTAINS NICKEL-CADMIUM BATTERY. BATTERY MUST BE RECYCLED OR DISPOSED OF PROPERLY." or "CONTAINS SEALED LEAD BATTERY. BATTERY MUST BE RECYCLED." as applicable.

[42 U.S.C. § 14322\(b\).](#)

Reese's Law (15 U.S.C. 2056): According to the CPSC's Proposed Rule for the Safety Standard and Notification Requirements for Button Cell or Coin Batteries and Consumer Products Containing Such Batteries, Reese's Law does not require marking or labeling regarding the ingestion hazard directly on button cell or coin batteries. However, the voluntary standard ANSI C18.3M advises to durably and indelibly mark coin cells with the "Keep Out of Reach" icon, with a minimum icon size of 6 mm in diameter. In accordance with Reese's Law, the Commission recommends the "Keep Out of Reach" icon be used in conjunction with warning labels on battery and consumer product packaging to quickly convey the required message and direct the reader's attention to the warning label. CPSC staff advises that requiring button cell or coin batteries that are visible within the packaging at the point of sale to have the "Keep Out of Reach" icon will further remind the consumer of the ingestion hazard, and direct attention to the icon and warning label on the battery packaging. Additionally, placing the "Keep Out of Reach" icon on button cell or coin batteries would continue to inform consumers of the ingestion hazard posed by the battery at all stages of its lifecycle, including while it is in battery packaging, when placed in a consumer product, or when loose.

Federal Law (battery chargers): For products that include Battery Chargers as defined in the Definitions section, please see the "Sun Charger/Electrical Charger" card for relevant requirements.

California Law

Rechargeable Batteries - In California, a product with an internal USB-rechargeable battery would probably be considered a small battery charging system ("BCS"). Please see the Sun Charger, USB Charger card for marking requirements, as well as details regarding potential federal preemption of certain California appliance efficiency requirements.

California Dry Cell Battery Management Act - Depending on battery chemistry, some batteries may also be subject to California labelling regulations. Under the California Dry Cell Battery Management Act, each rechargeable battery, consumer product package containing a rechargeable battery or battery pack, and the package for each such item, must:

1) Be labeled in a conspicuous manner that is visible to consumers;

2) Include the chemical name or the standard abbreviation for the chemical composition of the battery or battery pack; and

3) Contain the following statements:

(A) On each easily removable battery or easily removable battery pack: "NICKEL-CADMIUM BATTERY. MUST BE RECYCLED OR DISPOSED OF PROPERLY." OR "SEALED LEAD BATTERY. MUST BE RECYCLED OR DISPOSED OF PROPERLY."

(B) On each rechargeable consumer product, granted an exemption pursuant to [Section 15014](#), without an easily removable battery or battery pack: "CONTAINS NICKEL-CADMIUM BATTERY. BATTERY MUST BE RECYCLED OR DISPOSED OF PROPERLY." OR "CONTAINS SEALED LEAD BATTERY. BATTERY MUST BE RECYCLED OR DISPOSED OF PROPERLY."

(C) On the packaging of each rechargeable consumer product, rechargeable battery, or battery pack, unless the specified label is clearly visible through the packaging: "CONTAINS NICKEL-CADMIUM BATTERY. BATTERY MUST BE RECYCLED OR DISPOSED OF PROPERLY." OR "CONTAINS SEALED LEAD BATTERY. BATTERY MUST BE RECYCLED OR DISPOSED OF PROPERLY."

The label and messages must be in contrasting colors to differentiate the label message and background. [Cal. Public Res. Code § 15013\(b\)](#).

Maine Rechargeable Consumer Products: A person may not sell a product powered by a rechargeable battery (see definition above) unless the battery may be easily removed and the battery and packaging is clearly labeled to indicate that "the battery must be recycled or disposed of properly and that the type of electrode used in the battery is clearly identifiable." ME Stat. Tit. 38, [§ 2166\(1\)](#).

New Jersey Law: It is unlawful to sell a "rechargeable consumer product" (see the definition above) unless the product, its packaging, or the rechargeable battery it contains are labeled properly. [N.J.S.A. § 13:1E-99.64](#). The label, which must be visible to consumers prior to purchase, must bear one of the following statements, as appropriate:

"CONTAINS NICKEL-CADMIUM BATTERY. MUST BE DISPOSED OF PROPERLY"; or

"NICKEL-CADMIUM BATTERY. MUST BE DISPOSED OF PROPERLY."

"CONTAINS SEALED LEAD BATTERY. MUST BE DISPOSED OF PROPERLY"; or

"SEALED LEAD BATTERY. MUST BE DISPOSED OF PROPERLY."

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Federal Law (battery chargers): For products that include Battery Chargers as defined in the Definitions section, please see the "Sun Charger/Electrical Charger" card for relevant requirements.

Reese's Law [15 U.S.C. 2056e\(a\)](#): Federal law requires that manufacturers comply with warning label requirements for packages containing button cell or coin batteries. [16 C.F.R. § 1263.4](#).

(a) General Requirements.

(1) All warning statements or icons must be clearly visible, prominent, legible, and permanently marked.

(2) Warning statements or icons must be in contrasting color to the background onto which the warning statement or icon is printed.

(3) Warning statements must be in English.

(4) The safety alert symbol, an exclamation mark in a triangle, when used with the signal word, must precede the signal word. The base of the safety alert symbol must be on the same horizontal line as the base of the letters of the signal word. The height of the safety alert symbol must equal or exceed the signal word letter height.

(5) The signal word "WARNING" must be in black letters on an orange background. The signal word must appear in sans serif letters in upper case only.

(6) Certain text in the message panel must be in bold and in capital letters as shown in the example warning labels to get the attention of the reader.

(7) For labels that are provided on a sticker, hang tag, instructions or manual, the safety alert symbol and the signal word "WARNING" must be at least 0.2 in. (5 mm) high. The remainder of the text must be in characters whose upper case must be at least 0.1 in. (2.5 mm), except where otherwise specified.

(b) Warning label requirements for button cell or coin battery packaging.

(1) The principal display panel of the packaging must include the warning label in figure 4 to this paragraph (b)(1). The icon must be at least 8 mm (0.3 inches) in diameter. The text must state the warnings as shown on figure 4 to this paragraph (b)(1).

(2) If space prohibits the full warning label shown in Figure 4 to paragraph (b)(1), place the icon shown in figure 5 to this paragraph (b)(2) on the principal display panel with the text shown in figure 6 to this paragraph (b)(2) on the secondary display panel. The icon must be at least 20 mm in diameter. The text must state the warnings as shown on figure 6 to this paragraph (b)(2).

(3) The following safety-related statements must be included on the principal display panel or secondary display panel:

(i) The statement: Keep in original package until ready to use.

(ii) The statement: Immediately dispose of used batteries and keep away from children. Do NOT dispose of batteries in household trash.

[16 C.F.R. 1263.4.](#)

California Law:

All perchlorate materials must be labeled with the following text: "Perchlorate Material – special handling may apply. See www.dtsc.ca.gov/hazardouswaste/perchlorate."

The label must be conspicuously placed on either the exterior of all shipping packages and on consumer packages; or on a MSDS, shipping document, or other package insert that accompanies the perchlorate material.

[Cal. Code Regs §§ 67384.1 – 67384.10](#)

Maine Rechargeable Consumer Products: A person may not sell a product powered by a rechargeable battery (see definition above) unless the battery may be easily removed and the battery and packaging is clearly labeled to indicate that "the battery must be recycled or disposed of properly and that the type of electrode used in the battery is clearly identifiable." ME Stat. Tit. 38, [§ 2166\(1\)](#).

Massachusetts Law (button cell batteries): Manufacturers must label the packaging for button cell batteries must be labeled to inform prospective purchasers and product users, prior to purchase, that the product contains mercury and will need to

be managed properly at the end of its useful life ([MGL 21H, 310 CMR 75](#)). The label must clearly inform the purchaser that mercury is present in the product and that the product shall be reused, recycled or properly disposed of as hazardous waste. The label must be constructed of materials that are sufficiently durable to remain legible for the useful life of the product.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

Before a mercury-added product is sold in Massachusetts, the manufacturer must 1) submit a compliant labeling plan to the Massachusetts Department of Environmental Protection, or 2) label the product in compliance with a labeling plan approved by another state that is a member of the Interstate Mercury Education and Reduction Clearinghouse.

New Jersey Law:

a. On or after July 1, 1993, no person shall sell, offer for sale, or offer for promotional purposes in this State any rechargeable consumer product unless:

(1) the rechargeable battery is readily removable from the product; or the rechargeable battery is contained in a battery pack which is separate from the product and the battery pack is readily removable from the product;

(2) the rechargeable consumer product, the package containing the product, or the rechargeable battery are labeled pursuant to the provisions of subsection b. of this section; and

(3) the instruction manual for the rechargeable consumer product includes information explaining methods to assure the proper disposal of used nickel-cadmium or sealed lead rechargeable batteries, as appropriate.

b. Every rechargeable consumer product, the package containing the product, or the rechargeable battery contained therein shall be labeled in a manner which is visible to consumers prior to purchase informing consumers that used rechargeable batteries may not enter the solid waste stream, and that these types of used dry cell batteries shall be collected, recycled or disposed of in an environmentally sound manner. The label shall contain one of the following statements, as appropriate, printed in capital letters:

“CONTAINS NICKEL-CADMIUM BATTERY. MUST BE DISPOSED OF PROPERLY”; or

“NICKEL-CADMIUM BATTERY. MUST BE DISPOSED OF PROPERLY.”

“CONTAINS SEALED LEAD BATTERY. MUST BE DISPOSED OF PROPERLY”; or

“SEALED LEAD BATTERY. MUST BE DISPOSED OF PROPERLY.”

[N.J. Stat. 13:1E-99.64.](#)

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?
In which format, do we have to deliver the instruction manual to our customers ?

Federal Law:

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

Reese's Law:

(e) Instructions/Manuals accompanying consumer products containing button cell and coin batteries. (1) Instructions and manuals, if provided, must include the warning label shown in Figure 7 to paragraph (c)(1) and the following warning statements:

(i) The statement: “Immediately dispose of used batteries and keep away from children. Do NOT dispose of batteries in household trash.”;

(ii) The statement: “Even used batteries may cause severe injury or death.”;

(iii) The statement: “Call a local poison control center for treatment information.”;

(iv) Compatible battery type (e.g., LR44, CR2032);

(v) Nominal voltage;

(vi) For products with non-replaceable batteries, include a statement indicating the product contains non-replaceable batteries;

(vii) The statement: “Do not mix old and new batteries, different brands or types of batteries, such as alkaline, carbon-zinc, or rechargeable batteries.”;

(viii) The statement: “Ensure the batteries are installed correctly according to polarity (+ and -).”;

(ix) The statement: “Remove and immediately discard batteries from equipment not used for an extended period of time.”;

(x) The statement: “Non-rechargeable batteries are not to be recharged.”; and

(xi) The statement: “Do not force discharge, recharge, disassemble, heat above (manufacturer's specified temperature rating) or incinerate. Doing so may result in injury due to venting, leakage or explosion resulting in chemical burns.”.

(2) If instructions and manuals are not provided, the warning statements in paragraph (e)(1) of this section must be present on the principal display panel or secondary display panel of the consumer product packaging, or if there is no consumer product packaging, the accompanying hang tag or sticker label.

New Jersey Law: The instruction manual for “rechargeable consumer products” (see the definition above) must include information explaining methods to assure the proper disposal of used nickel-cadmium or sealed lead rechargeable batteries, as appropriate. [N.J.S.A. § 13:1E-99.64](#).

Texas Law: If Decathlon sells lead-acid batteries at retail stores in Texas (which is unlikely), it must post a notice sign, at least 8 ½ by 11 inches, containing the universal recycling symbol and all of the following language:

“It is illegal to discard or improperly dispose of a motor-vehicle battery or other lead-acid battery.”

“Recycle your used batteries.”

“State law requires us to accept used motor-vehicle batteries or other lead-acid batteries for recycling.”

[Tex. Health & Safety Code Ann. § 361.452](#).

Warnings - General ones

Are general warnings required ? If yes, which ones ?

No warnings are mandated by law other than those noted in the labeling section above. however, in general instructions or labels should identify all reasonably foreseeable hazards associated with a product and state the consequences of consumer actions explicitly. See CPSC, [Manufacturer's Guide to Developing Consumer Product Instructions](#) (October 2003).

Voluntary standards may also include warning language required to meet the industry or consensus standard.

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Illinois Law (lead): No one may sell any lead-bearing substance that may be used by the general public, unless it bears a warning statement as provided by federal law ([410 ILS 45](#)). If no federal rule exists, lead-bearing substances that contain lead-based paint or other form of lead must be labeled as: ""WARNING CONTAINS LEAD. MAY BE HARMFUL IF EATEN OR CHEWED. MAY GENERATE DUST CONTAINING LEAD. KEEP OUT OF THE REACH OF CHILDREN." The warning statement must be located in a prominent place on the item or package, such that consumers are likely to see the statement when it is examined under retail conditions. The statement must be conspicuous and not obscured by other written matter. The statement must be legible and contrast with the typography, layout, and color of the other printed matter. Compliance with [16 CFR 1500.121](#) constitutes compliance with these display requirements. The manufacturer or importer of record is responsible for complying with these requirements.

This requirement does not apply to any component part of a consumer electronic product, including, but not limited to, personal computers, audio and video equipment, calculators, wireless phones, game consoles, and handheld devices incorporating a video screen used to access interactive software and their associated peripherals, that is not accessible to a child through normal and reasonably foreseeable use of the product. A component part is not accessible if the component part is not physically exposed by reason of a sealed covering or casing and does not become physically exposed through reasonably foreseeable use and abuse of the product. Paint, coatings, and electroplating, singularly or in any combination, are not sufficient to constitute a sealed covering or casing. Coatings and electroplating are sufficient to constitute a sealed covering for connectors, power cords, USB cables, or other similar devices or components used in consumer electronics products.

"Lead-bearing substance" means any item containing or coated with lead such that the lead content is more than six-hundredths of one percent (0.06%) lead by total weight; or more than 1 milligram per square centimeter in the dried film of paint or previously applied substance.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

None identified, however, products that qualify as a hazardous substance must include the statement, "KEEP OUT OF REACH OF CHILDREN."

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Federal

Violations of the Mercury-Containing and Rechargeable Battery Management Act will be subject up to \$10,000 civil penalty per violation. [42 U.S.C. § 14304\(a\)\(1\)](#). EPA may also seek a temporary or permanent injunction. [42 U.S.C. § 14304\(a\)\(2\)](#).

California (Dry Cell Battery Management Act): Violations of the California Dry Cell Battery Management Act are misdemeanors. [Cal. Public Res. Code § 15013\(d\)](#).

Illinois Law (lead): A manufacturer or importer who fails to properly label toys containing paint or lead-bearing substances subject to a civil fine between \$50 and \$5,000 per day and could face criminal penalties as well ([410 ILS 45](#)).

Massachusetts Law (button cell batteries): A violation of this law may be punished by a fine of up to \$25,000 and/or imprisonment for up to two years for each violation; or a civil penalty up to \$25,000 for each violation. Each day each violation occurs is a separate offense ([MGL 21H](#)).

New Jersey Law (rechargeable consumer products): Violation of New Jersey's law regarding the labeling of "rechargeable consumer products" is punishable by a fine of \$500 to \$1,000 for each offense, with each day of a continuing violation being counted as a separate offense. [N.J.S.A. § 13:1E-99.78](#)

Comments

Comments

Recently, the CPSC, state agencies, and local municipalities, including in New York, have started to pay closer attention to products that use lithium-ion batteries (mainly e-bikes and e-scooters) because there have been several high profile fires originating from lithium-ion batteries. While there are no new applicable regulations to report at this time, this area is rapidly developing.

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

California - Rechargeable Battery Takeback [California Public Resources Code 42453 - 42454](#)

Every rechargeable battery retailer must have a system for the acceptance and collection of used rechargeable batteries for reuse, recycling, or proper disposal. Note, however, that a retailer is not subject to these requirements related to the sale of rechargeable batteries that are contained in or packaged with a battery-operated device.

A retailer's no-cost take-back obligation may be limited to a quantity equal to the number sold at the time of the take-back or previously sold to the consumer. If the retailer sells a rechargeable battery through a catalog order, telephone order, or other method that does not involve in-store sales, the retailer shall be deemed in compliance with this article if the retailer provides a reasonable notice either at the time of purchase or delivery to the consumer of an opportunity to return used rechargeable batteries at no cost for reuse, recycling, or proper disposal.

Under the California law, "rechargeable battery" means a small, nonvehicular, rechargeable nickel-cadmium, nickel metal hydride, lithium ion, or sealed lead-acid battery, or a battery pack containing these types of batteries. "Retailer" means a person who makes a retail sale of a rechargeable battery to a consumer in this state, including a manufacturer of a rechargeable battery who sells that rechargeable battery directly to a consumer. A sale includes, but is not limited to, transactions conducted through sales outlets, catalogs, or the Internet, or any other similar electronic means, but does not include a sale that is a wholesale transaction with a distributor or retailer. "Retailer" does not include a person who sells primarily food and is listed in the Progressive Marketing Grocers Guidebook. "Retailer" does not include a person who has less than one million dollars (\$1,000,000) annually in gross sales. Cal. Public Resources Code § 42452(d).

Additional California agency information available here: <https://dtsc.ca.gov/ab-1125-rechargeable-battery-recycling-act-fact-sheet/>

Battery manufacturers must provide the Department of Resources Recycling and Recovery (“department”) with a list of covered batteries and brands of covered batteries that the manufacturer sells, distributes for sale, imports for sale, or offers for sale in or into the state. Cal. Public Resources Code § 42421. Producers, which includes a person who manufactures a covered battery, must also submit a complete stewardship plan to the department. Id. at § 42422. A complete stewardship plan must cover the collection, transportation, recycling, and management, of covered batteries in an economically efficient and practical manner. Id. at § 42422.1.

Definitions:

(1) “Covered battery” means a device consisting of one or more electrically connected electrochemical cells designed to receive, store, and deliver electric energy. A covered battery includes a battery that is any of the following:

(A) A loose battery that is either sold separately from a product or that is designed to be easily removed from a product by the user of the product, with no more than common household tools.

(B) A battery that is packed with, but not installed in, the product that the battery is intended to power, when the product is offered for sale by the producer.

(2) “Covered battery” does not include any of the following:

(A) A primary battery weighing over two kilograms. For purposes of this subparagraph, “primary battery” means a non-rechargeable battery, including, but not limited to, alkaline, carbon-zinc, and lithium metal batteries.

(B) A rechargeable battery weighing over five kilograms and having a Watt-hour rating of more than 300 Watt-hours.

(C) A lead-acid battery, as defined in subdivisions (a) and (b) of Section 42440.

(D) (i) A battery contained in a motor vehicle. For purposes of this subparagraph, “motor vehicle” has the same meaning as set forth in Section 415 of the Vehicle Code.

(ii) Notwithstanding any other law, the exclusion in clause (i) does not apply to a battery contained in any of the following:

(I) A motorized scooter.

(II) A motorized skateboard.

(III) A motorized hoverboard.

(IV) A device intended to propel or move upon a highway only one individual person or property.

Cal. Public Resources Code § 42420.1(d)

(1) “Producer” means a person who manufactures a covered battery and who owns or is the licensee of the brand or trademark under which that covered battery is sold, offered for sale, or distributed for sale in or into the state.

(2) If there is no person in the state who is the producer for purposes of paragraph (1), the producer of the covered battery is the owner of a brand or trademark or, if the owner is not in the state, the exclusive licensee of a brand or trademark under which the covered battery is sold, imported for sale, offered for sale, or distributed for sale in or into the state. For purposes

of this subdivision, an exclusive licensee is a person holding the exclusive right to use a trademark or brand in the state in connection with the manufacture, sale, or distribution for sale in or into the state of the covered battery.

Cal. Public Resources Code § 42420.1(j)

“Retailer” means a person who sells or offers for sale covered batteries in or into the state to a person through any means, including, but not limited to, sales outlets, catalogs, the telephone, the internet, or any electronic means.

Cal. Public Resources Code § 42420.1(p)

Illinois – Rechargeable batteries

“(b) Unless expressly authorized by a recycling collection program, beginning January 1, 2020, no person shall knowingly mix a rechargeable battery or any appliance, device, or other item that contains a rechargeable battery with any other material intended for collection by a hauler as a recyclable material.

Unless expressly authorized by a recycling collection program, beginning January 1, 2020, no person shall knowingly place a rechargeable battery or any appliance, device, or other item that contains a rechargeable battery into a container intended for collection by a hauler for processing at a recycling center.

(c) The Agency shall include on its website information regarding the recycling of rechargeable batteries.”

Under Illinois law “rechargeable battery” means one or more voltaic or galvanic cells, electrically connected to produce electric energy, that are designed to be recharged for repeated uses. “Rechargeable battery” includes, but is not limited to, a battery containing lithium ion, lithium metal, or lithium polymer or that uses lithium as an anode or cathode, that is designed to be recharged for repeated uses. “Rechargeable battery” does not mean either of the following: (1) Any dry cell battery that is used as the principal power source for transportation, including, but not limited to, automobiles, motorcycles, or boats. (2) Any battery that is used only as a backup power source for memory or program instruction storage, timekeeping, or any similar purpose that requires uninterrupted electrical power in order to function if the primary energy supply fails or fluctuates momentarily. [415 ILCS 5/22.23d](#).

Portable and Medium-Format Battery Stewardship Act: Illinois recently passed the Portable and Medium-Format Battery Stewardship Act. [Public Act 103-1033](#). A “portable battery” includes primary or rechargeable covered batteries that meet the following requirements: “(1) for rechargeable batteries, a battery weighing no more than 11 pounds and having a rating of no more than 300 watt-hours; (2) for primary batteries, a battery weighing no more than 4.4 pounds.” A “primary battery” is a “a battery that is not capable of being recharged.” A “medium-format battery” is defined as a primary or rechargeable battery that meet the following criteria: “(1) for rechargeable batteries, a battery weighing more than 11 pounds or having a rating of more than 300 watt-hours, or both, and no more than 25 pounds and having a rating of no more than 2,000 watt-hours; (2) for primary batteries, a battery weighing at least 4.4 pounds but not more than 25 pounds.” A retailer is defined as “a person who sells covered batteries or battery-containing products containing one or more covered batteries in or into this State or offers or otherwise makes available covered batteries or battery-containing products containing one or more covered batteries to a customer, including other businesses, in this State.” A “producer” is defined as follows:

“ ...

(2) For covered battery-containing products containing one or more covered batteries sold, offered for sale, or distributed in or into this State:

(A) If the battery-containing product is sold, offered for sale, or distributed in or into this State under the brand of the product manufacturer, the producer is the person that manufactures the product.

(B) If the battery-containing product is sold, offered for sale, or distributed in or into this State under a retail brand or under a brand owned by a person other than the manufacturer, the producer is the brand owner.

...

Beginning January 1, 2026, a producer selling covered batteries must participate in an approved Illinois State battery stewardship plan through participation in and funding of a battery stewardship organization. Beginning July 1, 2026, retailers are prohibited from selling, offering for sale, distributing, or otherwise making available a “covered battery or battery-containing product containing one or more covered batteries unless the producer of the covered battery or battery-containing product is identified as a participant in a battery stewardship organization whose plan has been approved by the Agency.” Some of Decathlon’s products may fall under the definition of a “primary battery” and Decathlon may be considered a “producer” or “retailer” under this law.

Maine Law:

Regulation of dry cell batteries:

4. Manufacturer responsibility. A manufacturer of dry cell mercuric oxide or rechargeable batteries that are subject to [subsection 1](#) shall:

- A. Establish and maintain a system for the proper collection, transportation and processing of waste dry cell mercuric oxide and rechargeable batteries for purchasers in this State;
- B. Clearly inform each purchaser that intends to use these batteries of the prohibition on disposal of dry cell mercuric oxide and rechargeable batteries and of the available systems for proper collection, transportation and processing of these batteries;
- C. Identify a collection system through which mercuric oxide and rechargeable batteries must be returned to the manufacturer or to a manufacturer-designated collection site; and
- D. Include the cost of proper collection, transportation and processing of the waste batteries in the sales transaction or agreement between the manufacturer and any purchaser.

ME Stat. Tit. 38, [§2165\(4\)](#).

Regulation of lead-acid batteries:

2. Lead-acid battery retailers. A person selling or offering for retail sale lead-acid batteries shall:

- A. Accept, at the point of transfer, used lead-acid batteries in reasonably clean and unbroken condition from customers in a quantity at least equal to the number of new batteries purchased;
- B. If a used lead-acid battery is not exchanged at the time of sale, collect a \$10 deposit on the new battery.
 - (1) The deposit shall be returned to the customer when the customer delivers a used lead-acid battery within 30 days of the date of sale.
 - (2) All funds received by a dealer as a deposit on a lead-acid battery shall be held in trust and separately accounted for by the retailer. Any interest on those funds shall inure to the benefit of the retailer. Annually on July 1st, all deposits not returned to customers in exchange for lead-acid batteries during the previous year ending June 30th shall inure to the benefit of the retailer; and

C. Post an 8 1/2" x 11" written notice that includes the display of the universal recycling symbol and the following language.

- (1) "State law requires us to accept motor vehicle batteries or other lead-acid batteries for recycling in exchange for new batteries purchased."
- (2) "A deposit of \$10 will be charged for each new lead-acid battery that is not exchanged with an old lead-acid battery."
- (3) "It is illegal to dump, bury or incinerate a motor vehicle lead-acid battery or other lead-acid battery."
- (4) "Recycle your used batteries."

ME Stat. Tit. 38, [§ 1604](#).

New Jersey - Dry Cell Battery Management Act - [NJ Statutes 13:1E-99.59 - 99.81](#)

NJ Retailer Restrictions related to Rechargeable Consumer Products: Under NJ Statutes 13:1E-99.64, no person shall sell, offer for sale, or offer for promotional purposes in NJ any rechargeable consumer product unless:

- (1) the rechargeable battery is readily removable from the product; or the rechargeable battery is contained in a battery pack which is separate from the product and the battery pack is readily removable from the product;
- (2) the rechargeable consumer product, the package containing the product, or the rechargeable battery are labeled as outlined in the Labeling section of this conformity card; and,
- (3) the instruction manual for the rechargeable consumer product includes information explaining methods to assure the proper disposal of used nickel-cadmium or sealed lead rechargeable batteries as outlined in the Labeling section of this card.

"Rechargeable consumer product" is defined in section 13:1A-99.61 as any product, including, but not limited to, a cordless electrical tool or appliance, containing a nickel-cadmium rechargeable battery or a sealed lead rechargeable battery, which is purchased at retail and commonly used for personal or household purposes.

NJ Manufacturer Takeback Responsibilities. No person shall sell, offer for sale, or offer for promotional purposes in this State any dry cell battery, mercuric oxide battery, or any nickel-cadmium or sealed lead rechargeable battery, unless the manufacturer has obtained the prior written approval of a plan for the collection, transportation, recycling or proper disposal of that used dry cell battery, or joined a collective organization to manage such battery takeback. Statutes 13:1A-99.65 -67. "Manufacturer" is defined in NJ Statutes 13:1E-99.61 as "a person producing dry cell batteries for sale to institutional generators, distributors, retailers, small quantity generators or consumers." It is unlikely that Decathlon has manufacturer duties under the NJ law because it does not produce dry cell batteries.

New York - Rechargeable Battery Takeback [NY Env'tl Conservation Law 27-1807](#).

In New York state, retailers who sell rechargeable batteries must collect used rechargeable batteries from consumers. Rechargeable battery manufacturers must then collect the used batteries from retailers. Although not clearly stated in the NY law, it appears that retailers who sell devices that contain rechargeable batteries (but not batteries themselves) would not be subject to the battery takeback requirements.

Retailers having a place of business in NY must accept from consumers at any time during normal business hours rechargeable batteries of a similar size and shape as the retailer offers for sale (up to ten batteries per day from any person, even if the person does not purchase replacement batteries). In-state retailers must post a sign at or near the point of entry to the place of business that states (in letters at least one inch in height): "It is illegal to dispose of rechargeable batteries in the state of New York as solid waste. We accept used rechargeable batteries for return to the manufacturer."

Online retailers must provide "notice of an opportunity to return used rechargeable batteries at no cost to the consumer" at the time of purchase or delivery of the product.

"Rechargeable battery" means any rechargeable nickel-cadmium, sealed lead, lithium ion, nickel metal hydride battery, or any other such dry cell battery capable of being recharged weighing less than twenty-five pounds, or battery packs containing such batteries; but shall not include a battery used as the principal electric power source for a vehicle, such as, but not limited to, an automobile, boat, truck, tractor, golf cart or wheelchair; for storage of electricity generated by an alternative power source, such as solar or wind-driven generators; or for memory backup that is an integral component of an electronic device.

Examples include nickel-cadmium, sealed lead, lithium ion, nickel metal hydride, or any other dry cell battery less than 25 pounds that is capable of being recharged.

"Battery manufacturers" are defined to include persons, firms or corporations that produce or package rechargeable batteries sold in NY, or importers of rechargeable batteries sold or distributed in NY.

"Retailer" means a person, firm or corporation that engages in the sale of rechargeable batteries, or products containing such batteries, to a consumer in the state, including, but not limited to, transactions conducted through sales outlets, catalogs, by mail, telephone or the internet.

Additional information from the NY Department of Environmental Conservation is available here: <https://dec.ny.gov/environmental-protection/recycling-composting/rechargeable-battery-recycling>

Multi-State Lead-Acid Battery Fees. Several states in the U.S., including Texas, require payment of an environmental fee when purchasing a new lead-acid battery to help cover the disposal and recycling costs of these batteries at end of life. It does not appear that Decathlon sells lead-acid batteries, accordingly, state lead-acid battery fees are not detailed in this card.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

See the Labelling section of this card for mandatory federal and state labeling requirements aimed at reducing environmental pollution from batteries.

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

Even if there is no formally adopted mandatory safety standard for a given consumer product, if the U.S. Consumer Product Safety Commission determines that a product presents a "substantial risk of injury," the agency may require the manufacturer, importer, or other responsible party to conduct a product recall. To reduce the risk of having a product present a substantial risk of injury as it relates to batteries, CPSC recommends that components and end products be certified to the applicable voluntary industry standard, including as applicable: cells, battery packs with BMS safety circuits, chargers, and the end product system. High density batteries, such as lithium ion batteries, are a particular CPSC safety focus area.

Potentially relevant voluntary battery and end-product safety standards include:

Portable Applications

- UL 2054 – Household/Commercial Batteries
- UL 1642 – Lithium Batteries
- UL 2056 – Power Banks
- UL 8139* – Electrical Systems for e-Cigarettes Motive/Transportation Applications
- ANSI/UL 2271 – Light EV Batteries
- ANSI/UL 2580 – EV Batteries
- ANSI/CAN/UL 2272-16 Electrical Systems for Personal E-Mobility Devices (hoverboards, electric scooters)
- UL 2849* – e-Bikes, e-Scooters, e-Motorcycle
- UL 3030* – UAVs / Drones

Stationary Applications

- ANSI/UL 1973 – Stationary Batteries
- ANSI/UL 9540 – Energy Storage Systems
- ANSI/UL 1989 – Standby batteries Multi-use
- ANSI/UL 2743 – Portable Power Packs
- ASTM F963-16 Toy Safety (e.g., battery operated toys)
- IEEE 1725-2011 Rechargeable Batteries for Cellular Telephones
- IEEE 1625-2008 Rechargeable Batteries for Mobile Computing
- UL 2595 – General Requirements for Battery-Powered Appliances
- UL 60745-1 - Hand-Held Motor-Operated Electric Tools
- UL 62841-1 - Electric Motor-Operated Hand-Held Tools, Transportable Tools and Lawn and Garden Machinery

Relevant Recalls: The following battery products have recently been recalled due to fire and burn hazard:

·E-Bikes - <https://www.cpsc.gov/Recalls/2023/E-Bikes-Recalled-Due-to-Fire-Explosion-and-Burn-Hazards-Distributed-by-Ancheer> & <https://www.cpsc.gov/Recalls/2022/Santa-Cruz-Bicycles-Recalls-Heckler-9-Electric-Bicycles-Due-to-Fall-and-Fire-Hazards>

·Battery Charger/Hand Warmers - <https://www.cpsc.gov/Recalls/2018/beanworthy-recalls-combination-battery-chargers-hand-warmers-due-to-fire-and-burn>

·Lithium batteries - <https://www.cpsc.gov/Recalls/2017/Springs-Window-Fashions-Recalls-Lithium-Batteries-Sold-with-Motorized-Window-Coverings-Recall-Alert>

·Portable Power Banks - <https://www.cpsc.gov/Recalls/2018/amazon-recalls-portable-power-banks-due-to-fire-and-chemical-burn-hazards-recall-alert>

·Solar Powered Light Fixture Batteries - <https://www.cpsc.gov/Recalls/2018/cooper-lighting-recalls-solarbattery-powered-light-fixtures-due-to-fire-hazard>

·Electric Skateboard (lithium ion battery) - <https://www.cpsc.gov/ja/node/34249>

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Federal Law

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

Transportation Requirements for Lithium Batteries - Although the scope of MCB does not extend to product shipping requirements, please note that there are restrictions on shipping lithium ion batteries by air and requirements applicable to shipping lithium batteries and products containing lithium batteries via other modes of transportation. One standard that is relevant to enable less restricted shipping of lithium ion and lithium metal batteries under U.S. and international regulations is UN/DOT 38.3. Although not mandatory, certification of lithium ion and lithium metal batteries to the UN/DOT 38.3 standard helps reduce certain restrictions on shipping these batteries and products containing these batteries.

Most notably, as of January 1, 2022, each manufacturer and subsequent distributor of lithium cells or batteries manufactured on or after January 1, 2008, must make available a test summary that includes:

- (i) Name of cell, battery, or [product manufacturer](#), as applicable;
- (ii) Cell, battery, or [product manufacturer](#)'s contact information to include address, telephone number, email address, and website for more information;
- (iii) Name of the test laboratory, to include address, telephone number, email address, and website for more information;
- (iv) A unique test report identification number;
- (v) Date of test report;
- (vi) Description of cell or battery to include at a minimum;
 - (A) Lithium ion or lithium metal cell or battery;
 - (B) Mass of cell or battery;
 - (C) Watt-hour rating, or lithium content;
 - (D) Physical description of the cell/battery; and
 - (E) Cell or battery model number or, alternatively, if the test summary is established for a [product](#) containing a cell or battery, the [product](#) model number.
- (vii) List of [tests](#) conducted and results (i.e., pass/fail);
- (viii) Reference to assembled battery testing requirements (if applicable);
- (ix) Reference to the revised edition of the UN Manual of [Tests](#) and Criteria used and to amendments thereto, if any; and
- (x) Signature with name and title of signatory as an indication of the validity of information provided.

[49 CFR § 173.185.](#)

Rechargeable Lithium-Ion Batteries in Micromobility Devices: A bill was proposed on May 16, 2024 that would require the CPSC to promulgate safety standards for rechargeable lithium-ion batteries in micromobility devices. [H. R. 1797](#).

Reese's Law: The Consumer Product Safety Commission published rules pursuant to Reese's Law which mandate requirements for consumer products containing button cell or coin batteries.

(a) General. Consumer products containing button cell or coin batteries must meet the performance and labeling requirements in this part to minimize the risk of children accessing and ingesting button cell or coin batteries. Consumer products with battery compartments that allow consumers to remove or replace a button cell or coin battery must comply with the performance requirements in paragraph (b) of this section. Consumer products with battery compartments that do not allow for the removal or replacement of any button cell or coin batteries must comply with the performance requirements in paragraph (c) of this section.

(b) Performance requirements for consumer products containing button cell or coin batteries that are removable. (1) A removable or replaceable button cell or coin battery in a consumer product must not be made accessible when tested pursuant to paragraph (d) of this section.

(2) Battery compartments for removable or replaceable button cell or coin batteries must meet the requirements in paragraph (e) of this section and be secured using at least one of the following methods:

(i) Secure the battery compartment enclosure so that it requires a tool, such as a screwdriver or coin, to open the battery compartment. Opening a battery compartment secured by one or more screws, or a twist-on access cover, must require a minimum torque of 0.5 Nm (4.4 in-lb) and a minimum angle of 90 degrees of rotation, or the fastener(s) must engage a minimum of two full threads. Screws or fasteners used to secure the battery compartment enclosure must be captive to the compartment door, cover, or closure.

(ii) Secure the battery compartment enclosure so that it requires a minimum of two independent and simultaneous hand movements to open. The movements to open cannot be combinable to a single movement with a single finger or digit.

(c) Performance requirements for consumer products containing button cell or coin batteries that are non-removable. Consumer products containing button cell or coin batteries not intended for removal or replacement must be made inaccessible by:

(1) Using a battery compartment enclosure that complies with the performance requirements of paragraph (b) of this section; or

(2) Securing the button cell or coin battery using soldering, fasteners such as rivets, or equivalent means, that passes the Secureness Test in paragraph (f) of this section.

(d) Accessibility test method. This test assesses whether a child can access a button cell or coin battery installed in a consumer product by determining whether the accessibility probe can contact a button cell or coin battery. The test method is as follows:

(1) To determine whether a button cell or coin battery is accessible, first open and remove any part of the battery compartment enclosure that can be opened or removed without a tool or that can be opened or removed with anything less than two independent and simultaneous movements (for example, a zipper or hook and loop).

(2) If a part of the battery compartment enclosure is protected by pliable material such as fabric, paper, foam, or vinyl, or a pliable material with a seam, apply the Tension Test for Seams in Stuffed Toys and Beanbag-Type Toys test in [16 CFR part 1250](#) to determine whether the battery compartment enclosure can become exposed or accessible, using a force of at least 70.0 N (15.7 lbf). If a new part of the battery compartment enclosure becomes exposed or accessible, repeat the test in paragraph (d)(1) of this section and the test in this paragraph (d)(2) until no new part of the battery compartment enclosure becomes exposed or accessible, and then conduct the test in paragraph (d)(3) of this section.

(3) Insert or apply the accessibility probe to any depth that a battery compartment opening will permit, and rotate or angle the accessibility probe before, during, and after insertion or application through the battery compartment opening to any position that is necessary to determine whether the probe can contact the button cell or coin battery. This test is not intended to judge the strength of the material comprising the battery compartment. Use the minimum force necessary in determining whether the probe can contact a button cell or coin battery.

(e) Performance tests for consumer products containing button cell or coin batteries. After pre-conditioning in accordance with paragraph (e)(1) of this section, consumer products containing a button cell or coin battery must pass the performance requirements in paragraph (e)(2) or (f) of this section in the order presented, as applicable.

(1) Pre-conditioning. Subject each test sample consumer product to applicable pre-conditioning:

(i) Stress relief. Subject each sample consumer product with a battery compartment enclosure, door/cover, or door/cover opening mechanism that is made from molded or formed thermoplastic materials to a stress relief test. Place each test sample consumer product in a circulating air oven for at least 7 hours, using an oven temperature of the higher of at least 70°C (158 °F) or at least 10°C (18 °F) higher than the maximum temperature of thermoplastic battery compartment enclosures, doors/covers, or door/cover opening mechanisms during the most stringent normal operation of the consumer product. Allow the sample consumer product to cool to room temperature after removal from the oven.

(ii) Battery replacement. This step applies only to consumer products with button cell or coin batteries intended to be removable or replaceable. Open the battery compartment enclosure, remove and replace the button cell or coin battery, and close the battery compartment enclosure for a total of 10 cycles. For battery compartment enclosures that are secured with a screw(s),

the screw(s) must be loosened and then tightened each time using a suitable screwdriver, applying a continuous linear torque according to the Torque to be Applied to Screws table, Table 20, of the Standard for Audio, Video and Similar Electronic Apparatus—Safety Requirements, UL 60065. If the screw(s) do not meet the specified torque requirements during this step, remove the screw(s) and repeat the test in paragraph (d) of this section.

(2) Abuse tests. Subject each test sample consumer product to the following abuse tests, performed sequentially, as applicable. Check compliance of the sample using paragraph (e)(3) of this section. If the consumer product contains button cell or coin batteries that are not intended for removal or replacement, and that are accessible based on paragraph (c) of this section, then the consumer product must be tested under paragraph (f) of this section and this paragraph (e)(2) does not apply.

(i) Drop test. Drop each sample consumer product ten times from a height of 1.0 m (39.4 in) onto a horizontal hardwood surface in positions likely to produce the maximum force on the battery compartment enclosure. The hardwood surface must be at least 13 mm (0.5 in) thick, mounted on two layers of nominal 19 mm (0.75 in) thick plywood, and placed on a concrete or equivalent non-resilient surface.

(ii) Impact test. Subject the battery compartment enclosure door or cover on each sample consumer product to three, at least 2-J (1.5-ft·lbf) impacts. Produce the impact by dropping a steel sphere, 50.8 mm (2 in) in diameter, and weighing approximately 0.5 kg (1.1 lb) from the height required to produce the specified impact, as shown in figure 1 to this paragraph (e)(2)(ii), or suspend the steel sphere by a cord and swing as a pendulum, dropping through the vertical distance required to cause the steel sphere to strike the battery compartment enclosure door or cover with the specified impact, as shown in figure 2 to this paragraph (e)(2)(ii). The steel sphere must strike the battery compartment enclosure door or cover perpendicular to the surface of the battery compartment enclosure.

[16 CFR § 1263.3.](#)

California Law

Depending on the battery chemistry, products with internal rechargeable batteries may be subject to California's Appliance Energy Efficiency Regulations for Battery Charger Systems. [20 Cal. Code Regs. §§ 1601-1608](#) ("2012 Amendments"). Please see the Sun Charger, USB Charger conformity card for details regarding the California Appliance Efficiency regulations and potential federal preemption of same.

Also, all packages that contain perchlorate materials must be designed and constructed such that under conditions normally incident to handling, there will be no release of perchlorate materials into the environment; and must be water resistant. [Cal. Code Regs §§ 67384.1 – 67384.10.](#)

Maine Law:

Regulation of mercuric oxide batteries:

A person may not sell, distribute or offer for sale in this State a consumer mercuric oxide button cell battery. The sale and use of all other types of mercuric oxide batteries is subject to the requirements of section 2165. ME Stat. Tit. 38, §1661-C (11).

New York Law: In March 2023, the New York City Council passed 663-A that requires e-mobility devices owned, rented, or leased in New York City to have a certification by an accredited testing laboratory to:

- UL 2849, the Standard for Electrical Systems for e-Bikes, for the electrical system of any powered bicycle sold, distributed, leased, or rented in New York City.

- UL 2272, the Standard for Electrical Systems for Personal E-Mobility Devices, for all powered mobility devices, including e-scooters, sold, distributed, leased, or rented in New York City.

- UL 2271, the Standard for Batteries for Use In Light Electric Vehicle Applications, of any storage battery for a powered bicycle or mobility device sold, distributed, leased or rented in New York City.

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

Federal Law:

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

New Jersey Law: All “rechargeable consumer products” (see the definition above) sold in New Jersey must be made such that (a) the rechargeable battery is readily removable from the product, or (b) the rechargeable battery is contained in a battery pack which is separate from the product and the battery pack is readily removable from the product. [N.J.S.A. § 13:1E-99.64](#).

See also the relevant voluntary consensus standards mentioned in the General Safety Standards section above.

Electrical aspects

What are requirements regarding electrical aspects ?

Voluntary Industry Standards - Numerous standards organizations develop battery safety standards which, although voluntary, are commonly followed to reduce product liability concerns. To reduce the risk of having a product present a substantial risk of injury as it relates to batteries, CPSC recommends that components and end products be certified to the applicable voluntary industry standard. See the General Safety Requirements section above for additional discussion of CPSC recommendations.

Several examples of standards bodies are included below.

- Underwriters Laboratory (UL). With regard to batteries, the CPSC works with UL to develop relevant voluntary consensus standards (see [CPSC Batteries Website](#) and [CPSC Voluntary Standards Activities FY 2012 Annual Report at 9-10](#)), but there is no statute or regulation that makes compliance with UL standards mandatory. UL standards are widely followed, and failing to follow them might create heightened liability if a product covered by these standards malfunctioned in some way. However, it remains that conformity to these standards is not legally required under U.S. law. See UL1642 to UL 2054 for voluntary battery standards.

- Additional standards bodies include: the American National Standards Institute (ANSI) (whose consensus-based standards are published by the National Electrical Manufacturers Association, NEMA); the Institute of Electrical and Electronics Engineers (IEEE), and the International Electrotechnical Commission (IEC), that writes international standards for electrical, electronic and related technologies that address general, safety, and transportation specifications.

The type of non-mandatory testing selected by companies entering the U.S. market depends on the type of battery technology and products they are offering, the company's risk tolerance and desired image, shipping considerations, and other factors.

Potentially relevant voluntary battery and end-product safety standards include:

Portable Applications

- UL 2054 – Household/Commercial Batteries
- UL 1642 – Lithium Batteries
- UL 2056 – Power Banks
- UL 8139* – Electrical Systems for e-Cigarettes Motive/Transportation Applications
- ANSI/UL 2271 – Light EV Batteries
- ANSI/UL 2580 – EV Batteries
- ANSI/CAN/UL 2272-16 Electrical Systems for Personal E-Mobility Devices (hoverboards, electric scooters)
- UL 2849* – e-Bikes, e-Scooters, e-Motorcycle
- UL 3030* – UAVs / Drones

Stationary Applications

- ANSI/UL 1973 – Stationary Batteries
- ANSI/UL 9540 – Energy Storage Systems
- ANSI/UL 1989 – Standby batteries Multi-use
- ANSI/UL 2743 – Portable Power Packs
- ASTM F963-16 Toy Safety (e.g., battery operated toys)
- IEEE 1725-2011 Rechargeable Batteries for Cellular Telephones
- IEEE 1625-2008 Rechargeable Batteries for Mobile Computing
- UL 2595 – General Requirements for Battery-Powered Appliances
- UL 60745-1 - Hand-Held Motor-Operated Electric Tools
- UL 62841-1 - Electric Motor-Operated Hand-Held Tools, Transportable Tools and Lawn and Garden Machinery

Inflammability

Are there any specific requirements to ensure inflammability?

See the General Safety Requirements section above for identification of potentially relevant voluntary consensus standards.

Hygiene

What are the rules regarding hygiene ?

None identified.

Radioactivity

What are the rules regarding radioactivity ?

None identified.

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators, if applicable.

Products making noise

What are the requirements regarding products making noise ?

None identified.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Federal Law:

The Mercury-Containing and Rechargeable Battery Management Act ([42 USC Sections 14301-14336](#)) was designed to phase out the use of mercury in batteries and facilitate the collection and recycling of nickel-cadmium rechargeable, small sealed lead-acid rechargeable, and other regulated batteries. Regulated batteries include those containing cadmium and/or lead electrodes or other batteries subject to a determination by the Administrator of the EPA. The Act prohibits the sale of:

- Alkaline-manganese batteries to which mercury has been intentionally introduced, except for alkaline-manganese button cells, which are limited to 25 milligrams of mercury per button cell;
- Zinc-carbon batteries containing intentionally introduced mercury; and
- Button cell mercuric-oxide batteries.

See the Chemical Substances Insert for additional information.

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Federal Law:

Transportation Requirements for Lithium Batteries: Although the scope of MCB does not extend to product shipping

requirements, please note that there are restrictions on shipping lithium ion batteries by air and requirements applicable to shipping lithium batteries and products containing lithium batteries via other modes of transportation. In particular, when shipping lithium batteries after January 1, 2019 the "lithium battery mark" becomes mandatory even for small, excepted batteries and battery-powered devices. The formerly permitted lithium battery handling "Caution" label option that was formerly available under U.S. and International regulations has now been phased out. Contact your logistics providers for additional details regarding shipping requirements, including marking shipping packages with the specific UN number(s) associated with the battery shipment (i.e., UN3480, UN3481, UN3090, and UN3091) and other mandatory information. See the Technical rules / Standards section of this card for more information.

Reese's Law Packaging Requirements: Section 3 of Reese's Law requires "any button cell or coin battery sold, offered for sale, manufactured for sale, distributed in commerce, or imported into the United States, or included separately with a consumer product sold, offered for sale, manufactured for sale, distributed in commerce, or imported into the United States" to utilize packaging that meets the requirements of [16 CFR § 1700.15](#). This requirement is effective after February 12, 2023. Therefore, any subject product manufactured or imported after February 12, 2023, must meet this packaging requirement.

California Law:

CA Toxics in Packaging Prevention Act

The California Toxics in Packaging Prevention Act, [Cal. Health & Safety Code §§ 25214.11--25214.26](#), prohibits the production, sale, or promotion of packages or packaging components in which any of the metals cadmium, lead, mercury, or hexavalent chromium either (a) have been intentionally introduced, or (b) have a combined incidental presence greater than 100 parts per million by weight. A "package" is defined as any container providing a means of marketing, protecting, or handling a product, including unsealed receptacles such as crates, cups, wrapping films, and bags. A "packaging component" is defined as any individual assembled part of a package, including blocking, bracing, cushioning, weatherproofing, exterior strapping, coatings, closures, inks, labels, dyes, pigments, adhesives, stabilizers, or any other additives. [Id. § 25214.12](#).

The Toxics in Packaging Prevention Act distinguishes between "manufacturers" of packages and packaging components, versus "purchasers" who purchase and take title to a package or packaging component for the purpose of packaging a product manufactured, distributed, or sold by the purchaser. [Id. § 25214.12](#). Decathlon would be a "purchaser" under this law. Packaging manufacturers are required to provide a Certificate of Compliance to the purchaser of the packaging stating that the package or packaging component is in compliance with the Toxics in Packaging Prevention Act. If the manufacturer does not provide a Certificate of Compliance, the purchaser must request it. Purchasers are required to retain Certificates of Compliance for as long as a package or packaging component is being used. DTSC may request these from purchasers at any time. [Id. § 25214.16](#); see DTSC Fact Sheet, [Toxics in Packaging: Information for Purchasers of Packaging](#) (Jan. 2009).

Penalties. Violations of the CA Toxics in Packaging Prevention Act, [Cal. Health & Safety Code §§ 25214.11--25214.26](#), are subject to administrative penalties, [id. § 25187](#), and civil penalties for intentional or negligent violations of \$25,000 per separate violation or per day of a continuing violation, [id. § 25189](#). Knowing and intentional violations are punishable by a criminal fine of not less than \$5,000 nor more than \$100,000, by imprisonment for not more than one year, or by both the fine and imprisonment. [Id. § 25214.22.1](#). Purchasers of packaging who offer their own products for sale in packaging that violates this law may assert an affirmative defense that they relied on a Certificate of Compliance from the packaging manufacturer, had no reason to know the packaging was not in compliance, and took immediate corrective action upon receiving a notice of violation from DTSC. This affirmative defense is not available if a purchaser has already been found in violation at least two times in the preceding three years. [Id. § 25214.22](#).

CA Rigid Plastic Packaging Container Program

The California Rigid Plastic Packaging Container Program, 14 CCR §§ 17943–17949, requires product manufacturers who sell products held in RPPCs to meet one of several compliance options. "Rigid plastic packaging container" (RPPC) generally means a plastic packaging container that is made entirely of plastic (except for incidental portions of the packaging), has a relatively inflexible shape or form, has a capacity between 8 ounces and 5 gallons, and is capable of at least one closure. Compliance options include:

- Making the RPPC with at least 25% post-consumer material;
- Reducing the RPPC's weight by at least 10%, including relative to similar packaging;
- Concentrating the [formulated] product held in the RPPC by at least 10%;

- Establishing that the RPPC is routinely reused at least 5 times;
- Establishing that the RPPC is routinely returned and refilled at least 5 times; or
- Establishing that the RPPC is recycled at least 45% of the time.

Container manufacturers are required to provide product manufacturers a certification of compliance for any RPPCs sold. Product manufacturers known or found to use RPPCs receive a 90-day notice from CalRecycle of registration requirements. If CalRecycle selects a product manufacturer for the compliance certification process, the manufacturer will receive a one-year notice of certification requirements (meaning, you would be notified a year ahead that you would need to certify compliance in the following calendar year). See CalRecycle, [California's Rigid Plastic Packaging Container \(RPPC\) Program](#) (Dec. 2015).

Penalties. Under the California RPPC Program, 14 CCR §§ 17943–17949, non-compliant product manufacturers may be assessed penalties of up to \$100,000. Violations may include, but are not limited to, failure to submit all required information, submitting incomplete information, or failing to comply with the law. Under the law, there is a three phase approach: (1) companies may be contacted by DTSC requesting that they register; (2) a small subset of the registered companies will receive a notice that they may be required to certify compliance the following calendar year; (3) a smaller subset of the notified companies will actually have to certify compliance with the CA RPPC requirements. Note: per CalRecycle's webpage, <https://calrecycle.ca.gov/enforcement/>, there have been no enforcement actions under this law since 2005.

CA Biodegradability Claims

[Cal. Pub. Res. Code §§ 42355–42358.5](#) restricts the use of “biodegradable,” “compostable,” and related claims about any plastic products or plastic packaging. It is unlawful to sell any product or packaging made of plastic — alone or in combination with other material — that is labeled “compostable,” “marine degradable,” “biodegradable,” “degradable,” “decomposable,” or in any other way implies that the item will break down, fragment, biodegrade, or decompose in a landfill or any other environment, unless the plastic product or plastic packaging meets the applicable standard of the following:

- ASTM D6400 for compostable plastics;
- ASTM D7081 for non-floating biodegradable plastics in the marine environment.

See California State Attorney General, [Quick Reference Guide to “Biodegradable,” “Compostable,” and Related Claims on Plastic Products in California](#) (Dec. 2012).

Penalties (CA Biodegradability Claims). Violations of [Cal. Pub. Res. Code §§ 42355–42358.5](#) are subject to civil penalties of \$500 for the first violation of this chapter, \$1,000 for the second violation, and \$2,000 for the third and any subsequent violation.

CA Extended Producer Responsibility

On June 30, 2022, the governor signed [SB 54 \(Allen, Chapter 75, Statutes of 2022\)](#) that requires by 2032:

- 100% of packaging in the state to be recyclable or compostable
- 25% cut in plastic packaging
- 65% of all single-use plastic packaging be recycled

To stay informed on the latest information on the Packaging EPR rulemaking process and issues, sign-up for email updated by joining the [SB 54: Plastic Pollution Prevention and Packaging Producer Responsibility Act \(Packaging EPR\) listserv](#) or visit [this webpage](#).

Penalties. The department may issue a notice of violation to, and impose an administrative civil penalty not to exceed fifty thousand dollars (\$50,000) per day per violation on, any entity not in compliance with this chapter or any of the regulations the department adopts to implement this chapter, unless the entity meets the criteria of paragraph (5) of subdivision (a) of Section 42061, in which case the civil penalty shall not exceed twenty-five thousand dollars (\$25,000) per day per violation.

Before determining whether to assess a penalty, the department may allow a producer or a PRO to develop and submit a corrective action plan to the department detailing how and when the producer or PRO will come into compliance. Cal. Pub. Res. Code § [42081](#).

Illinois Law

IL Heavy Metals in Packaging (SCOPE): A "package" means a container providing a direct means of marketing, protecting, or handling a product, and includes a product unit package, an intermediate package, or a shipping container as defined by ASTM D996 ([415 ILCS 5/21.5](#)). "Package" also includes such unsealed consumer product receptacles as carrying cases, crates, cups, pails, rigid foil and other trays, wrappers and wrapping films, bags, and tubs. "Packaging component" means any individual assembled part of a package including, but not limited to, any interior or exterior blocking, bracing, cushioning, weatherproofing, coatings, closure, ink, and labeling; except that coatings shall not include a thin tin layer applied to base steel or sheet steel during manufacturing of the steel or package ([415 ILCS 5/21.5](#)).

(PROHIBITION/REQUIREMENTS): No product may be offered for sale by its manufacturer or distributor in Illinois in a package that includes any ink, dye, pigment, adhesive, stabilizer, or other additive that contains lead, cadmium, mercury, or hexavalent chromium that has been intentionally introduced during manufacturing or distribution ([415 ILCS 5/21.5](#)). In addition, no package, packaging component, or product in a package may be offered for sale if the sum of the concentration levels of lead, cadmium, mercury, or hexavalent chromium present in the package or packaging component exceeds 100 ppm by weight. Packaging components including strapping, seals, fasteners, and other industrial packaging components intended to protect, secure, close, unitize, or provide pilferage protection for a product destined for commercial use are excluded from this regulation. The manufacturer or supplier of the packaging must provide the package's distributor with a certificate of compliance stating that a package or packaging component complies with these requirements.

Penalties: Violators may be subject to a civil penalty up to \$50,000 for the violation and an additional civil penalty up to \$10,000 per day during which the violation continues ([415 ILCS 5/42](#)).

Maine Law

Reduction of Toxics in Packaging

"Package" means a container used in marketing, protecting or handling a product. "Package" includes a unit package and a shipping container defined by the American Society for Testing and Materials in its annual book of standards as ASTM, D996; a food package; and unsealed receptacles such as carrying cases, crates, cups, pails, rigid foil and other trays, wrappers and wrapping films, bags and tubs.

"Packaging component" means any individual assembled part of a package such as, but not limited to, any interior or exterior blocking, bracing, cushioning, weatherproofing, exterior strapping, coatings, closures, inks and labels. Tin-plated steel that meets the American Society for Testing and Materials specification A-623 must be considered as a single package component. Electrogalvanized coated steel and hot-dipped coated galvanized steel that meets the American Society for Testing and Materials specifications A-525 and A-879 must be treated in the same manner as tin-plated steel.

The act restricts the concentration levels of the following heavy metals contained in the packaging and packaging components to be less than 0.01% by weight:

- Lead
- Mercury
- Cadmium
- Hexavalent chromium

This act prohibits sales of food packaging containing phthalates and PFAS in Maine. This requirement does not apply to manufacturers of food or beverage products that have annual national sales of all food and beverage products of less than one billion dollars.

A manufacturer that is exempted from the phthalates and PFAS prohibition must submit a written request to the Department of Environmental Protection explaining that he or she fulfills the exemption requirements in this section.

The Department will decide whether they approve the exemption or not. A 2-year exemption may be granted to the qualified manufacturer. [32 M.R.S. 1733](#).

Penalties. Any manufacturer or supplier that violates the law could face a \$100 fine for each package or packaging component in violation. [32 M.R.S. 1736](#).

Coding of Plastic Containers

No person may distribute, sell, or offer for sale in Maine any plastic bottle or rigid plastic container without a molded, imprinted, or raised label indicating the type of plastic resin used to produce the plastic bottle or rigid plastic container. [32 M.R.S. § 1722](#).

Penalties: A violation shall be a civil violation for which forfeiture of not more than \$100 may be adjudged. Each container in violation constitutes a separate offense. [26 M.R.S. § 1725](#).

Maine Law (Extended Producer Responsibility Bill): Maine has established a [stewardship program for packaging](#). Producers of products will pay into a fund based on the amount and the recyclability of packaging associated with their products. These funds will be used to reimburse municipalities for eligible recycling and waste management costs, make investments in recycling infrastructure, and help Maine citizens understand how to recycle. This program's purpose is to reduce the volume and toxicity and increase the recycling of packaging material. It will provide support to municipalities in their recycling efforts and in doing so improve recycling outcomes for packaging material in Maine.

Massachusetts Law

MA Plastic Containers: No person may distribute or sell any plastic bottle or rigid plastic container in MA unless such product is labeled with a code indicating the plastic resin used to produce the bottle or container placed within a triangle of arrows ([MGL 94 § 323A](#)). "Rigid plastic container" includes any formed or molded container, other than a bottle, intended for single use, composed predominantly of plastic resin and having a relatively inflexible finite shape or form with a capacity of eight ounces or more but less than five gallons. "Plastic bottle" is defined as plastic container that has a neck that is smaller than the body of the container, accepts a screwtype, snap cap or other closure and has a capacity of sixteen fluid ounces or more, but less than five gallons ([MGL 94 § 321](#)).

Penalties (MA Plastic Containers): Violators are subject to a civil penalty up to \$1,000 for each violation ([MGL 94 § 327](#)).

New Jersey Law:

NJ Hazardous Packaging: Under New Jersey's hazardous packaging law, is unlawful to offer a product for sale in a package where the package or any of its packaging components, inks, dyes, pigments, adhesives, stabilizers or any other additives contain any lead, cadmium, mercury, or hexavalent chromium that (a) has been intentionally introduced during manufacturing or distribution, or (b) is incidentally present in excess of 100 parts per million by weight (0.01%). ([N.J.S.A § 13:1E-99.47](#)). New Jersey package manufacturers are required to provide certificates of compliance to product manufacturers such as Decathlon; Decathlon must retain this certificate so long as the product is in use. ([N.J.S.A § 13:1E-99.51](#)). It is a defense if Decathlon relies on the written assurance of the packaging manufacturer or distributor (signed by an authorized representative of the manufacturer or distributor) that the packaging complies with New Jersey's hazardous packaging law. ([N.J.S.A § 13:1E-99.54](#)).

Penalties: Violation of New Jersey's hazardous packaging law carries a fine of up to \$25,000 per day. ([N.J.S.A § 13:1E-99.53](#), [N.J.S.A § 13:1E-99.54](#)).

New York Law:

NY Hazardous Packaging. Under New York's hazardous packaging law, is unlawful to offer any product for sale in a package where the package or any of its packaging components, inks, dyes, pigments, adhesives, stabilizers or any other additives contain lead, cadmium, mercury or hexavalent chromium in excess of 100 parts per million by weight (0.01%). ([Environmental Conservation Law art 37, §37-0205](#)). Note that it is a defense to any claim that Decathlon has violated New York's hazardous packaging law to show that Decathlon relied in good faith on the written assurance of the packaging manufacturer that the packaging met the requirements of New York's packaging law. This written assurance must be in the form of a certificate of compliance stating that the packaging is in compliance with Title 2 of Article 37 of the Environmental Conservation Law, and must also be signed by an authorized official from the packaging company.

Penalties: The first violation of New York's hazardous packaging law is punishable by a civil penalty not to exceed \$10,000; second and subsequent violations can result in fines up to \$25,000 for each violation. ([Environmental Conservation Law art 37, § 37-0201](#)).

Texas Law: No packaging specific requirements identified.

Washington Law:

WA Rigid Plastic Containers and Bottles: Rigid plastic containers and plastic bottles sold in Washington must be labeled with the resin type within triangular arrows ([RCW 70.95F](#)). Plastic is defined as material made of polymeric organic compounds and additives that can be shaped by flow. Rigid plastic container is a formed or molded container, other than a bottle, intended for single use, composed predominantly of plastic resin, and having a relatively inflexible shape or form with a capacity 8 ounces to five gallons. A plastic bottle is a plastic container intended for single use that has a neck that is smaller than the body of the container, accepts a screw-type cap, snap cap, or other closure and has a capacity between 16 fluid ounces and five gallons.

Penalty (WA Rigid Plastic): One who sells a plastic bottle or rigid plastic container without appropriate labeling is subject to a civil penalty of \$50 for each violation, with a maximum of \$500 ([RCW 70.95F](#)). The seller may also be enjoined from continuing violations. Each distribution constitutes a separate offense.

WA Heavy Metals in Packaging: Packages and packaging components must contain less than 100 ppm of lead, cadmium, mercury, and hexavalent chromium ([RCW 70.95G](#)). The limit applies only if the metals were intentionally introduced as elements during manufacturing or distribution. Manufacturers must develop a certificate of compliance stating that its package or packaging component is in compliance with the metal requirements. Manufacturers must keep these certificates three years after the package's last sale or distribution, and certificates must be provided to the Washington Department of Ecology upon request.

Penalties (WA Heavy Metals Packaging). The Department of Ecology may prohibit the sale of any package for which a manufacturer has failed to respond to a request for a certificate of compliance within sixty days ([RCW 70.95G](#)).

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Voluntary Safety Testing: Numerous labs offer battery safety testing, and many companies test their batteries either to limit potential product liability or to support reduced requirements for shipping products (such as those containing lithium batteries). Labs well known for battery testing include but are not limited to Intertek, Eurofins Met Labs, UL, TÜV SÜD, and SGS.

California Law: No proactive testing is required under Proposition 65. If a company conducts testing to determine whether there is exposure/whether a warning is required, this can be done by any laboratory that is familiar with Proposition 65 testing.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

For penalties associated with packaging violations, please see the packaging technical requirements section above.

California Law:

Any person who violates Proposition 65 by failing to provide a required warning regarding exposure to Proposition 65 listed chemicals may be liable for a civil penalty of up to \$2,500 per day for each violation. [Health & Saf. Code § 25249.7](#). In practice, Proposition 65 cases are typically settled with an average settlement amount in the \$50,000 range plus an agreement to either reformulate or provide Proposition 65 warnings for the product.

Violations of the California Appliance Energy Efficiency Regulations are subject to administrative civil penalties for each non-compliant unit sold or offered for sale in California. [20 CCR § 1609\(a\)\(2\)](#). The enforcement regulations allow civil penalties up to a maximum of \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#).

Any violation of this chapter is a misdemeanor. [CA Public Resources Code 15020-15024](#).

Illinois Law:

A person who manufactures or distributes products containing more than 0.001% of pentaBDE or octaBDE is subject to a fine between \$10,000 and \$25,000 for each violation ([410 ILCS 48](#)).

The penalty for selling a mercury-added zinc air button cell battery is a fine between \$50 and \$200 for each violation ([410 ILCS 46](#)).

Maine Law (toxic chemicals): Violators may be subject to a \$2,500-\$25,000 criminal penalty for each day of the violation, except the minimum amount for knowing violations is \$5,000 for each day of the violation. Violators may be subject to a \$100-\$10,000 civil penalty for each day of the violation or, if the violation relates to hazardous waste, of not more than \$25,000 for each day of the violation. [38 M.R.S. § 349](#).

Maine Law (lead): This section may be enforced in a civil action brought by the Attorney General under the Maine Unfair Trade Practices Act, except that the following provisions apply as penalties for violations of this section.

A. For the first violation by a manufacturer a warning must be given instead of an enforcement by the Attorney General if the employer has the equivalent of 25 or fewer full-time, year-round employees.

B. For all other violations the following provisions apply as penalties for violations of this section.

(1) For the first violation of this section, the penalty is not more than \$100 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$5,000.

(2) For a 2nd violation of this section, the penalty is not more than \$500 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$25,000.

(3) For a 3rd or subsequent violation of this section, the penalty is not more than \$1,000 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$50,000.

(4) A penalty under this section may be waived by the court if it is determined that the person in good faith and with due diligence attempted to comply with the requirements of this section and promptly corrected after discovery any noncompliance with this section. [252 M.R.S. 1316-A](#).

Massachusetts Law (lead): A person who applies lead-based paint or glaze to a covered product or sells such a product is subject to a fine between \$100 and \$500 for each violation ([MGL 111.196](#), [105 CMR 460](#)). Each article to which a lead-based substance is applied constitutes a separate violation. A person who willfully applies a lead-based substance to a toy or sells such a toy is subject to imprisonment for up to three months for each violation. In addition, any article of personal property in violation of the lead-based substance law may be embargoed by the Massachusetts Department of Environmental Protection.

Massachusetts Law (banned hazardous substances): Violators are subject to a fine between \$100 and \$500 and/or imprisonment up to 90 days on the first offense and on subsequent offenses, subject to imprisonment for up to 1 year and/or a

fine between \$600 and \$3,000 ([MGL 94B § 4](#)). When an authorized inspector has probable cause to believe that a product is a banned hazardous substance, he must mark the substance as banned and give notice to the manufacturer, the distributor, and the owner of the product ([MGL 94B § 5](#)). He must also embargo the product. The manufacturer, distributor, or owner may remove the product from public display but may not remove it from the premises. The product will be considered a banned hazardous substance until the proceedings are complete. If the court finds that the embargoed article is banned, the article will be destroyed at the expense of the manufacturer, distributor, or owner under supervision of the inspector, and all court costs and fees and storage expenses will be taxed against the manufacturer, distributor or owner.

New Jersey Law: Violation of New Jersey's battery laws is punishable by a fine of \$500 to \$1,000 for each offense, with each day of a continuing violation being counted as a separate offense. (N.J.S.A. § 13:1E-99.78).

New York Law (flame retardants): Violation of New York's law regarding brominated flame retardants is also a misdemeanor; each product made, sold or offered for sale is a separate violation. ([Environmental Conservation Law art 37, § 37-0111\(5\)](#)).

Washington Law (PBDE ban): The Department of Ecology may issue a warning letter to a manufacturer that produces, sells, or distributes prohibited products (i.e., products containing the banned PBDEs) ([RCW 70.76](#)). If compliance is not achieved one year after the warning letter is sent, the Department of Ecology may assess civil penalties: up to \$1,000/violation for a first offense and up to \$5,000 for each repeat offense. In addition, a manufacturer that knowingly produces, sells, or distributes prohibited products must recall the product and reimburse the retailer or any other purchaser for the product and any applicable shipping and handling for returning the products.

Comments

Comments

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Federal Law:

Batteries. Although not mandated by law, the U.S. Consumer Product Safety Commission (CPSC) recommends testing to verify that batteries meet relevant voluntary consensus standards. Often you can ask your battery manufacturer for results or certifications to such tests or standards. See Technical Rules section for a list of potentially relevant standards,

Battery chargers: Before distributing any "battery charger," and annually thereafter, Decathlon must submit a certification report to DOE certifying that each model meets the applicable energy conservation standard(s). [10 C.F.R. § 429.12](#). Required contents for certification reports are summarized at [10 C.F.R. § 429.12](#) and [10 C.F.R. § 429.39](#). Submissions must be made online at <http://www.regulations.doe.gov/ccms>. DOE offers reporting instructions and some product-specific templates at <https://www.regulations.doe.gov/ccms/templates.html>. Certification test methods for battery chargers are set forth at [10 C.F.R. § 430, Subpt. B, App. Y](#).

Decathlon must maintain records of these certification reports for battery chargers as well as the underlying test data for at least two years from the date that Decathlon notifies DOE that the model has been discontinued. [10 C.F.R. § 429.71](#).

The DOE Compliance Certification Database is available [here](#).

FCC regulations for radio frequency devices

For any battery chargers in this category that qualify as "unintentional radiators" as defined in the Definitions section, please see the "Sun Charger/Electrical Charger" card.

California (battery chargers): Under the California Appliance Energy Efficiency Regulations for Battery Charger Systems (BCS), BCS must be certified prior to sale or offer for sale in California. See the Sun Charger, USB Charger card for California CEC requirements and potential preemption of same by the federal DOE standards for battery chargers.

Massachusetts Law (button cell batteries): No mercury-added product shall be offered for final sale or use or distributed in the commonwealth without notification in writing by the manufacturer of the product to the department through IMERC within 30 days of the product's release in accordance with this section ([MGL 21H](#)).

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way. Certain voluntary standards such as UN/DOT 38.3 are also commonly used to help reduce the shipping burdens for lithium ion and lithium metal batteries. Note that the U.S. Consumer Product Safety Commission staff strongly recommend that manufacturers or importers seek third party certification for their electrical products as a means of hazard mitigation.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Laboratory

[In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them](#)

Federal Law: U.S. Department of Energy (DOE) Test methods for "battery chargers" are set forth at [10 C.F.R. § 430, Subpt. B, App. Y](#). Decathlon is not required to use a particular laboratory.

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as "unintentional radiators" as defined in the Definitions section, please see the "Sun Charger/Electrical Charger" card.

Voluntary Safety Testing: Numerous labs offer battery safety testing, and many companies test their batteries either to limit potential product liability and/or to support reduced requirements for shipping products (such as those containing lithium batteries).

Labs well known for battery testing include but are not limited to Intertek, Eurofins Met Labs, UL, TÜV SÜD, and SGS.

California Law: Testing for certification of battery chargers must be conducted through a listed approved laboratory (or you may apply to become registered as a certified laboratory if you wish to conduct your own testing). See the Sun Charger, USB Charger conformity card for California CEC requirements and potential preemption of same by the federal DOE standards for battery chargers.

Comments

Comments

Documents

What are the conformity documents ? Can you please list them ?

Federal Law: For federally regulated Battery Chargers, please see the Certification and Registration section of this card for documents required by the U.S. Department of Energy (DOE).

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

For Battery Chargers, please see the Certification and Registration section of this card for required documents.

Comments

Comments

Importation rules

General rules

What are the general rules in order to import the product ?

Federal Law:

Imported “Battery chargers” must comply with the DOE energy conservation requirements described in this card. Non-compliant products will be refused entry. [10 C.F.R. § 429.5](#).

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

Please see the Importation Rules Insert for additional information.

Documents

What are the required documents ?

Federal Law:

Entry Documents (for U.S. Imports generally)

Within 15 calendar days of the date that a shipment arrives at a U.S. port of entry, entry documents must be filed at a location specified by the port director. These documents are:

- Entry Manifest (CBP Form 7533) or Application and Special Permit for Immediate Delivery (CBP Form 3461) or other form of merchandise release required by the port director,
- Evidence of right to make entry,

- Commercial invoice or a pro forma invoice when the commercial invoice cannot be produced,
- Packing lists, if appropriate,
- Other documents necessary to determine merchandise admissibility.

If the goods are to be released from CBP custody at the time of entry, an entry summary for consumption must be filed and estimated duties deposited at the port of entry within 10 working days of the goods' entry

See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf> at pp. 12 and 35-37.

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

Battery Operated Toys would need a Children's Product Certificate indicating compliance with ASTM F963-16. See the "Toys" card for details.

Time period

In which time period may we obtain the right to import ?

None specified. But see tips for new importers and exporters at <http://www.cbp.gov/trade/basic-import-export/importer-exporter-tips>

Administration

What is the administration in charge of importations ? Name and address ?

U.S. Customs & Border Protection
OPA/CBP INFO Center
1300 Pennsylvania Avenue N.W., MS: 1345
Washington, DC 20229
United States of America

Comments

Comments

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

Federal Law:

U.S. CBP inspects imports generally. No specific procedures identified. The U.S. Consumer Product Safety Commission (CPSC) also conducts some screening of imports and marketplace offerings, particularly high density battery products such as lithium ion batteries. Lithium ion batteries in laptops, hoverboards, e-bikes, e-scooters, and mobile phones have received agency scrutiny.

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

See Certifications/Registrations section.

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

Documents

What are the required documents ?

See Certifications/Registrations section.

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as “unintentional radiators” as defined in the Definitions section, please see the “Sun Charger/Electrical Charger” card.

Transportation Requirements for Lithium Batteries: Although the scope of MCB does not extend to product shipping requirements, please note that there are restrictions on shipping lithium ion batteries by air and requirements applicable to shipping lithium batteries and products containing lithium batteries via other modes of transportation. In particular, when shipping lithium batteries after January 1, 2019 the "lithium battery mark" becomes mandatory even for small excepted batteries and battery-powered devices. The formerly permitted lithium battery handling “Caution” label option that was formerly available under U.S. and International regulations has now been phased out. Contact your logistics providers for additional details regarding shipping requirements, including marking shipping packages with the specific UN number(s) associated with the battery shipment (i.e, UN3480, UN3481, UN3090, and UN3091) and other mandatory information. See the Technical rules / Standards section of this card for more information.

Delay

What is the delay to obtain the right to commercialize ?

None identified.

Display in store

Is there some specific rules on the way to display the product in store ?

Federal Law: None identified.

California Law: None identified, unless a Proposition 65 warning is required for the product under California law and Decathlon chooses to provide the warning via a sign or shelf tag in the store rather than by a marking on the product packaging.

Massachusetts Law (imports): No person may sell or offer for sale any machinery, hardware, ladders, shoes or other footwear, fabrics, suits or other wearing apparel, sporting goods or equipment, or radios or parts thereof, which have been imported

from a foreign country, without notifying each person purchasing or intending to purchase the same that it has been imported, by displaying in a conspicuous place, in letters at least as large as the figures indicating the price of the goods to be sold, a sign marked "Imported Goods" ([MGL 94 § 277B](#)). If the goods have an individual price marking, then in like manner, they shall also be marked with the words "Imported Goods" or the country of origin indicated. In addition, no person may advertise these goods unless the advertisement also contains the words "Imported Goods."

New Jersey Law: When sold in retail stores, the product's total selling price must be plainly marked by a stamp, tag, label or sign affixed to the product or located where the product is offered for sale. ([N.J.S.A. § 56:8-2.5](#)). If the product is sold unassembled, any in-store picture showing the product in its assembled state must note that the product is sold unassembled. ([N.J.S.A. § 56:8-2.4](#)).

New York Law: If the product is comprised of more than six separate parts (excluding nuts, bolts, screws and similar connectors) and is sold unassembled, it is unlawful to display the product in its assembled state unless a sign indicating that the table must be assembled is prominently placed in close proximity to the display. ([NY General Business Law § 399-m](#)).

Display on internet

Is there some specific mentions to display the product on internet ?

None identified.

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

FCC regulations for radio frequency devices - For any battery chargers in this category that qualify as "unintentional radiators" as defined in the Definitions section, please see the "Sun Charger/Electrical Charger" card.

Comments

Comments

Administration

What is the administration in charge of commercialization ? Name and address ?

None identified.

Documents

[Decathlon - Importation Rules Insert.pdf](#)

[Decathlon - Chemical Substances Insert.pdf](#)